addition, he said the NSA's surveillance capabilities were "almost Orwellian" in scope.[8] He was referring to author George Orwell's book *1984*, published in 1949. He pointed out the government had not cited one instance in which NSA bulk intelligence had stopped a terrorist attack.

Eleven days after Judge Leon's ruling, a federal judge in New York offered a completely different opinion and a win for the NSA. On December 27, US District Judge William H. Pauley III ruled the massive collection of domestic phone data was lawful under Section 215 of the Patriot Act. He argued the program was the US government's "counter-punch" to stop terrorism and did not violate the Fourth Amendment.[9] But in May 2015, a federal appeals court ruled the NSA's practice of collecting data on Americans' phone calls did go beyond

FOURTH AMENDMENT OF THE CONSTITUTION

The text of the Fourth Amendment of the US Constitution, referred to by both judges who ruled for and against NSA mass surveillance programs, reads: "The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized."[10]

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